

26VECV01442 26VECV01442

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-08-31

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Case Number: 26VECV01442 Hearing Date: August 31, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Alan

Waugh,

Plaintiff,

v.

Samy

Omari, et al.

Defendants.

Case

Number Department

26VECV01442 107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer without Motion to

Strike

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Sustain with leave to amend

I.

BACKGROUND

Defendant

Samy Omari (“Omari”) and Plaintiff Alan Waugh (“Plaintiff”) met in May-June 2024. (Complaint ¶ 9.) Omari is a “singer and social media personality with a large online following.” (Complaint ¶ 1.)

On or about June 24, 2024, Omari and Plaintiff entered into a written management agreement (the “Agreement”). (Complaint ¶ 10.) Omari and Plaintiff developed a sexual and romantic relationship. (Complaint ¶ 1.) Omari and Plaintiff’s relationship deteriorated. (Complaint ¶ 1.) Omari failed to pay Plaintiff pursuant to the Agreement. (Complaint ¶ 14.) Between July 2024 and October 2025, Omari “engaged in a repeated pattern of physical violence, threats, and emotional abuse against Plaintiff . . .” (Complaint ¶ 16.) Omari was arrested under Penal Code section 273.5, subdivision (A) and charged with a felony. (Complaint ¶ 19.) Following the arrest, Omari made false statements about Plaintiff on his social media accounts. (Complaint ¶ 21.) Omari said Plaintiff “is a pedophile and grooms children for sexual abuse”, that Omari was Plaintiff’s victim, and that Plaintiff “victimized other young artists.” (Complaint ¶ 21.) In February and March 2026, Omari produced and starred in a music video where he “beats up a fictional version of [Plaintiff].” (Complaint ¶ 22.)

On March 11, 2026, Plaintiff filed a complaint against Defendants Omari, Samy Omari LLC, Najib Omari, Madeline Hamill, and Does 1 to 50, alleging causes of action for: (1) assault; (2) battery; (3) intentional infliction of emotional distress; (4) false imprisonment; (5) breach of contract; (6) quantum meruit; (7) wage and hour violations (employee); (8) defamation per se; and (9) declaratory and injunctive relief.

On June 4, 2026, Cross-Complainants Samy Omari and Samy Omari LLC filed a cross-complaint against Cross-Defendants Alan Waugh and Roes 1 to 10, alleging ten causes of

action.

On July 10, 2026,

Cross-Complainants Samy Omari and Samy Omari LLC filed a first amended cross-complaint against Cross-Defendants Alan Waugh and Roes 1 to 10, alleging causes of action for: (1) violation of Talent Agency Act (Cal. Lab. Code section 17200, et seq.); (2) negligent misrepresentation; (3) sexual assault; (4) sexual battery (Cal. Civ. Code section 1708.5); (5) defamation per se; (6) intentional interference with prospective business relations; (7) intentional infliction of emotional distress; (8) negligent infliction of emotional distress; (9) unjust enrichment; (10) violation of the DMCA (17 U.S.C. section 512(f)); (11) unlawful business acts and practices (Cal. Bus. & Prof. Code sections 17200, et seq.)

On July 16, 2026,

Cross-Defendant Alan Waugh ("Cross-Defendant") filed a demurrer without motion to strike. On August 18, 2026, Cross-Complainants Samy Omari and Samy Omari, LLC ("Cross-Complainants") filed an opposition. On August 24, 2026, Cross-Defendant filed a reply.

On August 10, 2026, Plaintiff

filed an amendment to complaint identifying Doe 1 as Souad Omari aka Sue Omari.

II.

TIMELINESS

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"A person

against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint." (Code Civ. Proc., § 430.40, subd. (a).) ¿ Electronic service extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Per Code

of Civil Procedure section ¿ 1005, subdivision (b), moving papers must be filed at least 16 court days before the set hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Cross-Complainants served Cross-Defendant with the first amended cross-complaint by electronic mail on July 10, 2026. (First Amended Cross-Complaint ["FACC"] pdf p. 27.) Cross-Defendant filed the demurrer six days later. Thus, the demurrer was timely under Code of Civil Procedure section 430.40.

The demurrer, opposition, and reply were also timely filed under Code of Civil Procedure section 1005, subdivision (b).

III.

MEET

AND CONFER

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Code of Civil Procedure section¿430.41, subdivision (a) requires parties to "meet and confer in person, by telephone, or by video conference" before the filing of a demurrer to attempt to resolve the objections raised in the demurrer.¿The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc., §¿430.41, subd. (a)(3).)

Cross-Defendant's counsel submits a declaration indicating they called Cross-Complainants' counsel but Cross-Complainants' counsel did not pick up. (Adams Declaration ¶ 3.) Cross-Complainants' counsel emailed Cross-Defendant's counsel and said he would file an amended cross-complaint. (Adams Declaration ¶ 4.) Cross-Complainants' counsel sent Cross-Defendant's counsel a redlined version of the first amended cross-complaint and Cross-Defendant's counsel responded that the first amended cross-complaint did not resolve the issues. (Adams Declaration ¶ 5.) Cross-Defendant's counsel emailed Cross-Complainants' counsel the demurrer and asked Cross-Complainants' counsel if he would reconsider his position. (Adams Declaration ¶ 7.) Cross-Complainants' counsel responded: "[w]e are fine with you proceeding to file. We believe the parties have worked in good faith to narrow the issues as much as possible." (Adams Declaration ¶ 7.)

Code of Civil

Procedure section 430.41, subdivision (a) requires meeting and conferring in

person, by telephone, or by videoconference. Cross-Defendant's counsel's declaration shows only that they called Cross-Complainants' counsel about the cross-complaint, not the first amended cross-complaint. Thus, Cross-Defendant's counsel's declaration does not show sufficient meet and confer efforts.

"A

determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Code Civ. Proc., § 430.41, subd. (a)(4).) However, "trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort." (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3.)

The court may not

overrule a demurrer based on insufficient meet and confer efforts. As such, the court will consider the merits. In the future, counsels must satisfy their meet and confer obligations, or the court will consider continuing the hearing until the parties have an opportunity to properly meet and confer.

IV.

LEGAL

STANDARD

"A demurrer tests the

pleading alone, and not the evidence or the facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Id.*) The

court also considers "judicially noticed matters." (*Id.*) A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).) A "complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.)

A party may demur to a complaint because the complaint “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A party may also demur because the complaint or cross-complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) “[U]ncertain’ includes ambiguous and unintelligible.” (Code Civ. Proc., § 430.10, subd. (f).)

V.

DISCUSSION

Negligent

Misrepresentation Cause of Action:

Cross-Defendant argues

Cross-Complainants’ negligent misrepresentation cause of action lacks the required specificity. (Memorandum pp. 4-6.) Cross-Defendant argues Cross-Complainants fail to allege what the representations were, when they were made, and how they were made. (Memorandum p. 6.) Cross-Defendant further argues the statements are “non-actionable puffing and prediction of future outcomes.” (Memorandum pp. 6-7.)

In opposition, Cross-Complainants

argue they sufficiently allege the misrepresentations were made in or about June 2024 to in or about October 2025, to Omari, orally and in writing, via text messages and the Agreement, and “regarding his purported abilities as a “music manager and entertainment professional” capable of advancing Omari’s career.” (Opposition p. 5.) Cross-Complainants further argue that they allege Cross-Defendant made misrepresentations about his present status and abilities and Cross-Defendant had superior knowledge about the subject matter. (Opposition pp. 5-6.)

In reply,

Cross-Defendant argues the alleged “16-month window leaves cross-defendant to guess at which representations, their content, their date of transmission, and to whom they were transmitted, and whether the representations were verbal or in writing.” (Reply p. 3.) Cross-Defendant also argues that “general statements regarding a manager’s ‘abilities as an entertainment professional’ or capacity to ‘advance a career’ represent classic statements of opinion and puffery, not concrete representations of existing material fact, as argued in Plaintiff’s opening

brief.” (Reply p. 4.)

“The

elements of negligent misrepresentation are ‘(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.’” (National Union Fire Ins. Co. of Pittsburgh, PA v.

Cambridge Integrated Services Group, Inc. (2009) 171 Cal.App.4th 35, 50.)

“While there is some conflict in the case law discussing the precise degree of particularity required in the pleading of a claim for negligent misrepresentation, there is a consensus that the causal elements, particularly the allegations of reliance, must be specifically pleaded.” (Id.)

“When

affirmative misrepresentation fraud is alleged, ‘This particularity requirement necessitates pleading facts which “show how, when, where, to whom, and by what means the representations were tendered.”’” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43, original italics.)

Cross-Complainants

allege that “[f]rom

in or about June 2024 to in or about October 2025, [Cross-Defendant] made numerous representations to Omari orally and in writing, via text messages and the Agreement, regarding his purported abilities as a ‘music manager and entertainment professional’ capable of advancing Omari’s career.” (FACC ¶ 33.)

Cross-Complainants

allege how and by what means the misrepresentations were made, orally and in writing, via text messages and the Agreement. (FACC ¶ 33.)

Cross-Complainants

allege when the misrepresentations were made, from in or about June 2024 to in or about October 2025. (FACC ¶ 33.)

Cross-Complainants

allege to whom the misrepresentations were made, to Omari. (FACC ¶ 33.)

Cross-Complainants

do not allege where the oral misrepresentations were made.

The

allegation the misrepresentations regarded Cross-Defendant's "purported abilities as a 'music manager and entertainment professional' capable of advancing Omari's career" is vague and lacks the requisite specificity. Because the alleged misrepresentations lack the required specificity, the court does not, at this time, consider whether the misrepresentations constitute opinion or puffery.

The

demurrer on this ground is sustained.

Uncertainty:

Cross-Defendant states

in the notice of demurrer that the second cause of action for negligent misrepresentation is uncertain. (Notice of Demurrer p. 2.)

"Demurrers

for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.

[Citations.] 'A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.'" (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, brackets removed.) "Under our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (Id., brackets removed.)

The first amended

cross-complaint sufficiently apprises Cross-Defendant of the issues he is being asked to meet. The demurrer on this ground is overruled.

IV.

LEAVE

TO AMEND

"Where

the defect raised by a motion to strike or by demurrer is reasonably capable of

cure, 'leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.'" (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)

Cross-Complainants

amended the cross-complaint once. However, the court finds there is a reasonable possibility Cross-Complainants can cure the defects identified above.

V.

CONCLUSION

For

the foregoing reasons, the demurrer is sustained. Cross-Complainants are granted leave to amend within thirty (30) days of this order.

Dated: August 31, 2026 _____ Hon. Eric Harmon

Judge of the Superior

Court